

03:00 PM

25-CIV-02212 JESUS AGUILAR VS BC CAFE, INC.

LINE 1

JESUS AGUILAR
BC CAFE, INC.

DESIREE RUIZ ALFARO
CHRISTINE H. LONG

NOTICE OF COMPLEX CASE STATUS CONFERENCE

TENTATIVE RULING:

PARTIES ARE ORDERED TO APPEAR

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DEFENDANT: BC CAFÉ, INC'S MOTION TO STRIKE AND IN THE ALTERNATIVE DEMURRER

TENTATIVE RULING:

Defendant BC Café, Inc.'s ("BC Café") Motion to Strike and in the Alternative Demurrer is DENIED/OVERRULED for the reasons described below.

BC Café's Request for Judicial Notice is GRANTED, but not for the truth of the matters therein. Plaintiff's Request for Judicial Notice is GRANTED, but not for the truth of the matters therein.

This case involves wage and hour allegations brought by Plaintiff Jesus Aguilar ("Plaintiff") against thirteen entities: BC Café; Sun & Garden, Inc.; Farm House Kitchen Thai; Farmhouse Express, Inc.; Farmhouse Factory, Inc.; Farmhouse Kitchen Thai Cuisine; Farmhouse LAX, Inc.; BKK Café, Inc.; Bombay Rita, Inc.; Thai Tables, Inc.; Farmhouse Enterprise, LLC; Summer & Po, Inc.; and Sweet Bombay, Inc. (collectively, "Defendants").

BC Café moves to strike joint employer allegations and class allegations from Plaintiff's Complaint, arguing that Plaintiff only worked at BC Café, therefore Plaintiff's claims against the other defendants in the case (which BC Café refers to as "Non-Employer Defendants") are improper.

The Court notes that BC Café does not have standing to make arguments on behalf of non-moving parties, therefore arguably does not have standing to make the arguments in its motion. BC Café argues throughout its motion that it was Plaintiff's employer and states that it brings its motion "to Strike Portions of the Complaint pertaining to class allegations and to strike all claims against the Non-Employer Defendants." (Mot. at p. 1:2-3.) BC Café argues that the class allegations are improper because they can only be brought against Plaintiff's "employers," which again, BC Café admits it was. Therefore, through its own admission, the grounds raised for striking the Complaint are inapplicable to BC Café.

Nevertheless, pursuant to Code of Civil Procedure ("CCP") § 436, the Court can strike allegations upon a motion brought pursuant to CCP § 435, or "at any time in its discretion, and upon terms it deems proper." The Court therefore proceeds to rule on the substantive merits of this motion *sua sponte*. (*CPF Agency Corp. v. R&S Towing* (2005) 132 Cal.App.4th 1014, 1020–1021.) The Court notes that Plaintiff did not raise the issue of standing in its opposition and opposed the motion as if it had been brought by all Defendants. Therefore, the Court finds that making a substantive ruling *sua sponte* will not prejudice Plaintiff.

Legal Standard

"Unless the action is a limited civil case, the motion [to strike] lies either: [¶] To strike any 'irrelevant, false or improper matter inserted in any pleading'; or [¶] To strike any pleading or part thereof 'not drawn